

LW5618: LAW AND GENDER

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Law and Gender

Subject Code

LW - Law

Course Number

5618

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW4618 Law and Gender

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to introduce students to the idea as well as theories of feminism and equality, and develop an ability to analyse critically law and gender issues in diverse settings. The course will enable students to discover and challenge

various facets of gender bias – especially against women and LGBTI+ people – in law, legal institutions, policies and societal practices. It will also offer an understanding of how law and legal institutions – at both domestic and international levels – can be used to overcome gender discrimination against women and LGBTI+ people. The course should be able to prepare students to appreciate diversities and handle gender issues that arise in day-to-day life with appropriate sensitivity. It is hoped that teaching and learning activities during the course will nurture students' effective writing and oral communication skills in relation to law and gender issues.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Analytically describe and explain: - the concept as well as theories of feminism; - the distinction between formal and substantive conceptions of equality; - the need for asking 'women questions'; and - the law and gender issues that arise in both general and specific contexts having regard to global diversity.	20%	x		
2	Apply feminist (and other) theories as well as international human rights law to: - discover gender bias in various branches of law against women and LGBTI+ people; - question discriminatory practices that women and LGBTI+ people face in their day-to-day lives; - offer possible solutions to problems that arise in relation to law and gender issues; and - formulate and communicate, both orally and in writing, an advice in a clear and coherent manner.	40%	x	x	x
3	Invoke law and legal institutions to: - challenge, in a mock settings, discriminatory practices and regulations.	20%	x	x	
4	Critically evaluate and explore: - the social and historical context of law and gender issues; - the contribution that feminist discourse has made to the position and condition of women and LGBTI+ people in society; - the limitations of law and legal institutions in redressing gender discrimination against women and LGBTI+ people; and - the new challenges that the free market economy and globalisation are posing to feminism.	20%	x		

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Interactive reflections · Students will acquire basic knowledge of various relevant concepts and theories; · Students will develop – by asking, or responding to, questions and participating in discussions – analytical and critical capabilities regarding law and gender issues; · Students will get an opportunity, by participating in discussions and raising or responding to questions, to critically evaluate the contribution of the feminist discourse to the empowerment of women and LGBTI+ people; and · Students will receive guidance on further reading and self-learning.	1, 4	3 hour seminar per week

2	Exercises and discussion (including on Canvas and student-led)	· Students will apply feminist theories and international human rights law to ascertain gender bias in different branches of law and challenge, in a mock setting, laws or social practices discriminatory to women and LGBTI+ people; · Students will deepen their understanding by leading discussion on certain law and gender issues relevant for the course but not discussed by the teacher; · Students will explore, by commenting on topical gender issues/developments posted on Canvas, new challenges to feminism posed by globalization and also evaluate the limitations of law and legal institutions in redressing gender discrimination against women and LGBTI+ people; and · Students will present their solution or advice, orally or in writing on Canvas, in relation to how gender discrimination against women and LGBTI+ people could be redressed.	1, 2, 3, 4	
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3	Written brief and oral debate / journal writing	· Students will learn to draft a written brief in a small group and engage in an oral debate with peers on a pre-assigned topical law and gender issue to develop public speaking skills; and · Students will sharpen their ability to reflect critically on law and gender issues in a wider societal context and articulate clearly their views in a coherent and persuasive manner by engaging in these activities.	2, 3, 4	
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Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Exercises and discussion	2, 3, 4	20	will assess students' ability (i) to identify gender bias both in law and social practices against women and LGBTI + people, (ii) to discover gender discriminatory laws or practices and challenge these, in a mock setting, by employing human rights law as well as feminist theories, and (iii) to assess the contribution that the feminist discourse has made to the position of women as well as LGBTI + people and discover how globalisation is posing new challenges to feminism.	No

2	Gender debate / reflective journal	1, 2, 3, 4	30	will test students' ability (i) to research independently and evaluate critically a given law and gender issue in wider social, political, cultural and economic contexts, (ii) articulate one's views in a coherent and persuasive manner, and (iii) to evaluate critically the limitations of law and legal institutions in redressing gender discrimination.	No
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Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Examination will test students' ability (i) to describe and explain analytically the notion and theories of feminism as well as varied conceptions of equality, and (ii) to apply feminist theories and human rights law to offer solutions to given hypothetical situations involving gender discrimination against women and LGBTI+ people.

Grading of Student Achievement: Refer to Grading of Courses in the Academic Regulations (Attachment) and to the Explanatory Notes.

Students' achievements will be graded on the basis of their performance in the following three assessment tasks/activities:

- Exercises and discussion: 20% (participating in exercises and engaging in discussion, both in class and on Canvas, by using the relevant materials)
- Gender debate / reflective journal: 30% (writing a brief and participating in an oral debate on an assigned law and gender topic OR writing a reflective journal on current law and gender issues)
- Examination: 50% (a two-hour open book examination to test students' ability to understand, analyse, and evaluate law and gender issues)

Applicable to students admitted in Semester A 2022/23 and 2023/24

To pass this course, student must obtain an aggregate mark of 50% and a minimum of 50% in each of the continuous assessment and the examination elements of the assessment.

Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter

To pass this course, students must obtain an aggregate mark of 40% and a minimum of 40% in each of the continuous assessment and the examination elements of the assessment.

Assessment Rubrics (AR)

Assessment Task

Exercises and discussion (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Criterion

Ability to identify gender discriminatory practices, apply the relevant legal principles and feminist theories to real or hypothetical scenarios, and articulate one's views

Excellent

(A+, A, A-) Excellent identification of gender discriminatory practices, application of the relevant legal principles and feminist theories to real or hypothetical scenarios, and persuasive articulation of one's views

Good

(B+, B, B-) Good identification of gender discriminatory practices, application of the relevant legal principles and feminist theories to real or hypothetical scenarios, and persuasive articulation of one's views

Fair

(C+, C, C-) Fair identification of gender discriminatory practices, application of the relevant legal principles and feminist theories to real or hypothetical scenarios, and persuasive articulation of one's views

Marginal

(D) Barely adequate identification of gender discriminatory practices, application of the relevant legal principles and feminist theories to real or hypothetical scenarios, and persuasive articulation of one's views

Failure

(F) Poor identification of gender discriminatory practices, application of the relevant legal principles and feminist theories to real or hypothetical scenarios, and persuasive articulation of one's views

Assessment Task

Gender debate / reflective journal (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Criterion

Ability to evaluate gender issues in context, conduct research, articulate reasoned views cohesively by using supporting authorities

Excellent

(A+, A, A-) Excellent evaluation of gender issues in context, evidence of research and use of supporting authorities, and articulation of one's views in a cohesive and persuasive way

Good

(B+, B, B-) Good evaluation of gender issues in context, evidence of research and use of supporting authorities, and articulation of one's views in a cohesive and persuasive way

Fair

(C+, C, C-) Fair evaluation of gender issues in context, evidence of research and use of supporting authorities, and articulation of one's views in a cohesive and persuasive way

Marginal

(D) Barely adequate evaluation of gender issues in context, evidence of research and use of supporting authorities, and articulation of one's views in a cohesive and persuasive way

Failure

(F) Poor evaluation of gender issues in context, evidence of research and use of supporting authorities, and articulation of one's views in a cohesive and persuasive way

Assessment Task

Examination (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Criterion

Ability to analyse facts and social situations, identify relevant discrimination issues, apply legal principles, and communicate reasoned written advice in a cohesive manner

Excellent

(A+, A, A-) Excellent analysis of facts and social situations, identification of relevant discriminatory practices, application of legal principles, and excellent communication of reasoned advice

Good

(B+, B, B-) Good analysis of facts and social situations, identification of relevant discriminatory practices, application of legal principles, and good communication of reasoned advice

Fair

(C+, C, C-) Fair analysis of facts and social situations, identification of relevant discriminatory practices, application of legal principles, and adequate communication of somewhat reasoned advice

Marginal

(D) Barely adequate analysis of facts and social situations, identification of relevant discriminatory practices, application of legal principles, and barely adequate communication of advice

Failure

(F) Poor analysis of facts and social situations, identification of relevant discriminatory practices, application of legal principles, and poor communication of advice

Assessment Task

Exercises and discussion (Applicable to students admitted in Semester A 2022/23 and 2023/24)

Criterion

Ability to identify gender discriminatory practices, apply the relevant legal principles and feminist theories to real or hypothetical scenarios, and articulate one's views

Excellent

High

Good

Significant

Marginal

Moderate

Failure

Inadequate

Assessment Task

Gender debate / reflective journal (Applicable to students admitted in Semester A 2022/23 and 2023/24)

Criterion

Ability to evaluate gender issues in context, conduct research, articulate reasoned views cohesively by using supporting authorities

Excellent

High

Good

Significant

Marginal

Moderate

Failure

Inadequate

Assessment Task

Examination (Applicable to students admitted in Semester A 2022/23 and 2023/24)

Criterion

Ability to analyse facts and social situations, identify relevant discrimination issues, apply legal principles, and communicate reasoned written advice in a cohesive manner

Excellent

High

Good

Significant

Marginal

Significant

Failure

Inadequate

Part III Other Information

Keyword Syllabus

Different schools of feminist legal theories; women's human rights; formal and substantive equality; gender discrimination and law; gender issues in the criminal law, family law, and property law; sexual harassment and gender-based violence; sexual orientation and rights of LGBTI+ people; domestic violence; pornography; prostitution; women trafficking; sexual advertising; Chinese, comparative and international perspectives on law and gender.

Reading List